

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KEENAN JOHNSON,

Plaintiff,

-against-

Plaintiff designates
Kings County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK,
NYPD OFFICER JOHN DOE,
NYPD SERGEANT JERRY SUKHNANDAN and
NYPD OFFICER KERWIN ADAMES,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 23, 2021

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

The City of New York, c/o Corporation Counsel, 100 Church Street, New York, NY 10007

NYPD Sgt. Jerry Sukhnandan, c/o NYPD 70th Pct., 154 Lawrence Ave., Brooklyn, NY 11230

NYPD Officer Kerwin Adames, c/o NYPD 70th Pct., 154 Lawrence Ave., Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
KEENAN JOHNSON,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER JOHN DOE,
NYPD SERGEANT JERRY SUKHNANDAN and
NYPD OFFICER KERWIN ADAMES,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York, and resided at 360 East 29th Street, Brooklyn, NY.

2. That at all times herein mentioned, plaintiff suffered from and was diagnosed with emotional and psychological disorders.

3. That at all times herein mentioned, plaintiff had a canine companion named “Casper” who functioned as a service and emotional-support dog for plaintiff.

4. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

5. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly

served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

6. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

7. That at all times herein mentioned, defendant NYPD Officer John Doe, (hereinafter “Doe”), whose real name and identity are unknown to plaintiff, was a police officer employed by the NYPD.

8. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Doe was acting under color of state law.

10. That at all times herein mentioned, defendant NYPD Sergeant Jerry Sukhnandan (hereinafter “Sukhnandan”) was a police sergeant employed by the NYPD.

11. That at all times herein mentioned, Sukhnandan was acting within the course and scope of his employment with the NYPD.

12. That at all times herein mentioned, Sukhnandan was acting under color of state law.

13. That at all times herein mentioned, defendant NYPD Officer Kerwin Adames (hereinafter “Adames”) was a police officer employed by the NYPD.

14. That at all times herein mentioned, Adames was acting within the course and scope of his employment with the NYPD.

15. That at all times herein mentioned, Adames was acting under color of state law.

THE FACTS

16. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

17. That on November 11, 2020, Doe entered onto plaintiff's residence at 360 East 29th Street, Brooklyn, NY.

18. That Doe entered upon plaintiff's residence without a warrant, without permission or consent, and without otherwise being justified.

19. That after entering upon plaintiff's residence, Doe shot and killed Casper.

20. That shortly after the killing of Casper, plaintiff arrived at and attempted to enter his residence and render care to Casper.

21. That in response to plaintiff's attempt to enter his residence, NYPD officers, including but not limited to Sukhnandan and Adames (hereinafter referred to collectively as "the officers") forcibly seized plaintiff, threw him to the ground, and placed plaintiff tightly in handcuffs.

22. That the force used against plaintiff was excessive and was not justified under the circumstances.

23. That after placing plaintiff in handcuffs, the officers arrested plaintiff.

24. That the arrest of plaintiff was undertaken without a warrant and without probable cause to believe that plaintiff committed or was about to commit a crime.

25. That after arresting plaintiff, the officers imprisoned plaintiff and/or caused the imprisonment of plaintiff at various locations, including a police precinct and Central Booking.

26. That on or about November 11, 2020, the City of New York, by and through its agents, servants and/or employees, including the officers, then initiated and/or caused to be initiated

a criminal prosecution of plaintiff, in which plaintiff was charged with obstructing governmental administration, a crime that plaintiff did not commit and that the officers did not have probable cause to believe he committed.

27. That in support of the criminal prosecution, Adames signed and swore to an accusatory instrument in which he made allegations against plaintiff that were untrue and that Adames knew to be untrue.

28. That in support of the criminal prosecution, the officers also made statements to fellow officers and to the District Attorney that were false, and that the officers knew to be false, and otherwise fabricated accusations against plaintiff.

29. That among the false statements and fabricated accusations made by the officers were that plaintiff acted in a manner that prevented the officers from securing a crime scene.

30. That the false statements and fabricated accusations made by the officers constituted material evidence, and evidence that would likely influence a judge or jury as to plaintiff's guilt or innocence of the crime with which he was charged.

31. That the false statements and fabricated accusations made by the officers contributed to a deprivation of plaintiff's liberty.

32. That after being prosecuted for a period of over two months, the criminal charge against plaintiff was dismissed, and the criminal proceeding terminated favorably to plaintiff.

33. That each of the defendants herein observed the illegal and unconstitutional conduct of his fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, and deliberately failed to do so.

34. That defendants' actions were intentional, malicious, and without excuse or justification.

35. That as a result of the actions of defendants, plaintiff sustained physical and emotional injuries and distress, endured and will continue to endure pain and suffering and loss of enjoyment of life, suffered and continues to suffer the loss of his canine companion, suffered an aggravation and exacerbation of his pre-existing emotional and psychological disorders, incurred and will continue to incur economic loss, and sustained other damages.

36. That all of the causes of action herein fall within one or more of the exceptions of CPLR Section 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST JOHN DOE

(42 U.S.C. § 1983: Illegal Seizure)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That Doe's shooting and killing of Casper constituted an illegal, warrantless seizure of plaintiff's property, in violation of plaintiff's rights guaranteed under the Fourth Amendment to the U.S. Constitution, and entitles plaintiff to recover damages from Doe pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST THE CITY, SUKHNANDAN and ADAMES

(Assault and Battery under NY State Law)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforementioned actions of the officers, including Sukhnandan and Adames, constituted an assault and battery of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST THE CITY, SUKHNANDAN and ADAMES

(False Arrest/Imprisonment under NY State Law)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforementioned actions of the officers, including Sukhnandan and Adames, constituted a false arrest and false imprisonment of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE CITY, SUKHNANDAN and ADAMES

(Malicious Prosecution under NY State Law)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforementioned actions of the officers, including Sukhnandan and Adames, constituted a malicious prosecution of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST SUKHNANDAN and ADAMES

(42 U.S.C. § 1983: Illegal Seizures)

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. That the officers' assault and battery, false arrest and imprisonment, and malicious prosecution of plaintiff constituted illegal and warrantless seizures of plaintiff, in violation of plaintiff's rights guaranteed under the Fourth Amendment to the U.S. Constitution, and entitles plaintiff to recover damages from the officers pursuant to 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST SUKHNANDAN and ADAMES

(42 U.S.C. § 1983: Denial of Right to Fair Trial)

47. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. That the aforementioned actions by Sukhnandan and Adames in making false accusations and fabricating allegations against plaintiff constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training and Retention)

49. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

50. That the aforementioned incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of Doe, Sukhnandan, Adames, and the other officers.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Doe, Sukhnandan, and Adames, and attorney's fees against Doe, Sukhnandan, and Adames pursuant to 42 USC § 1988, and plaintiff also demands the costs and

disbursements of this action.

Dated: New York, New York
November 24, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By *Edward Sivin*
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
November 24, 2021

Edward Sivin

EDWARD SIVIN